

Chapter 16

STREETS, SIDEWALKS AND OTHER PUBLIC PLACES*

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ARTICLE I. IN GENERAL

Sec. 16-1. Use of skateboards, rollerblades and other similar devices.

(a) *Definition.* As used in this Code, skateboards, rollerblades and other similar devices shall mean every vehicle propelled solely by human power and upon which a person may ride and shall include skateboards, inline skates, roller-skates, rollerblades, unicycles, scooters, and all other similar devices, except bicycles which are regulated by chapter 19, article 9 of this Code and except for, wheelchairs and young children's tricycles and similar devices used to transport young children.

(b) *Prohibited acts.* It shall be unlawful for any person to use or ride a skateboard, rollerblades or similar device upon the following sidewalks and public ways:

- (1) Pleasant Street.
- (2) West Pleasant Street.
- (3) Broad Street.
- (4) Opera House Square.
- (5) Tremont Street from Broad Street to Opera House Square.
- (6) Main Street from Opera House Square to its intersection with Elm Street.
- (7) Water Street.
- (8) Mill Street.
- (9) Crescent Street.
- (10) Any municipal parking lots or parking garages.

(c) *Violations and penalties.* Each operator of a skateboard, rollerblades or other similar device who violates a provision of this section may be given a citation by any police officer or

parking enforcement officer who discovers such violation and upon conviction thereof shall be subject to a fine of not more than seventy-five dollars (\$75.00).

(Ord. No. 206, § 12, 12-10-80; Ord. No. 388, 8-13-97; Ord. No. 484, § 1, 5-9-07)

Sec. 16-2. Obstruction of public ways and places and buildings.

(a) No person, acting alone or with another or others, shall stand, congregate or in any way obstruct the free foot or vehicular passage of any person traveling on a street, highway, sidewalk or other public passageway. Any person so acting shall move on immediately upon request by any police officer or parking enforcement officer.

(b) No person shall in any way obstruct the entranceway to any store, office, shop, building, dwelling or parking area or lot. Any person obstructing such areas shall move on immediately upon request by any police officer or parking enforcement officer.

(c) Any person who fails to move on immediately upon request by any police officer or parking enforcement officer pursuant to subsections (a) and (b) above may be given a citation by the police officer or parking enforcement officer who observes the violation and upon conviction thereof shall be subject to a fine of not more than seventy-five dollars (\$75.00).

(Ord. No. 304, §§ 1—3, 5-23-89; Ord. No. 484, § 2, 5-9-07)

Secs. 16-3, 16-4. Reserved.

Sec. 16-5. Snow obstruction.

(a) *Prohibited.*

(1) No person shall put or place, or cause to be put or placed, snow or ice upon the surface of the sidewalks within the city or the travelled portion of any class IV or class V highway or city-maintained portion of any class II highway, except as provided in this section.

- (2) No person shall purposely or knowingly put or place, or cause to be put or placed, any snow, ice or other debris which covers a fire hydrant so as to make it inaccessible for immediate use in the event of a fire.

(b) *Enforcement.* The police department shall have the responsibility for enforcing this section.

(c) *Penalty.* Any person who violates the provisions of this section shall be guilty of a violation if a natural person, or guilty of a misdemeanor if any other person.
(Ord. No. 355, 3-9-94)

Secs. 16-6—16-25. Reserved.

ARTICLE II. STREETS*

DIVISION 1. GENERALLY

Secs. 16-26—16-40. Reserved.

DIVISION 2. EXCAVATIONS†

Sec. 16-41. Authority.

This division is enacted under the authority of RSA 249:13 through 249:18.
(Ord. No. 218, § 1, 5-12-82)

Sec. 16-42. Purpose.

This division regulates pavement cuts, street openings and other excavations and construction within city highways for the purposes of assuring coordination of installations and repairs to utility lines; efficient utilization of highway rights-of-way; control

***Cross references**—Parking restricted or prohibited on certain streets, § 19-90 et seq.; specific street regulations, § 19-121 et seq.; fire lanes, § 19-146 et seq.

†**Cross references**—Earth excavation regulations, App. D; subdivision regulations, App. E.

of traffic and minimization of traffic congestion during construction; and, proper maintenance of highways; all to the end that expenses for public highways are minimized and the public safety is assured.

(Ord. No. 218, § 2, 5-12-82)

Sec. 16-43. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

City engineer shall mean the city engineer for the city and such persons as he may designate to act for him.

City highway shall mean all roads, streets, and public ways, including the entire width of the rights-of-way, whether improved or not, within the city which have been designated as class IV, V or VI highways.

Department of public works (DPW) shall mean the director of the DPW, for the city, or such person as he may designate to act for him.

Emergency excavation shall mean any excavation which requires immediate action to protect public health or safety, including the maintenance of essential services to the public.

Excavation shall mean digging, cutting and/or disturbing the surface or subsurface of a city highway; construction, placement, repairs, and/or removal of utility lines within the right-of-way of city highways; and, placement of any construction materials or equipment within the rights-of-way of city highways.

Permit shall mean any written authorization issued by the city or any of its departments allowing excavation within a city highway.

Permittee shall mean any person to whom a written permit has been issued under the provisions of this division.

Police department shall mean the chief of police for the city and such persons as he may designate to act for him.

Utility lines shall mean all water, sewer, electric, gas, telephone, cable television, and drain lines, and other structures or equipment used to provide utilities to persons within the city.

Working day shall mean all days except Saturday, Sunday, and holidays recognized by the city.

(Ord. No. 218, § 3, 5-12-82)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 16-44. Applicability, exemptions.

This division shall apply to all excavations within a city highway except those specifically exempted:

- (1) The following persons and activities are exempt from the application of this division:
 - a. The city and all persons acting for it.
 - b. Railroads when operating under permission of the public utilities commission under authority of RSA 249:16.
 - c. Installing, replacing or repairing utility poles and above-ground electrical transmission systems which are authorized by a separate license or permit.
 - d. All activities authorized by the driveway permit regulations established under RSA 249:17.
 - e. Minor excavations which do not affect the travelled portion of city highways and which do not use equipment which impedes the flow of traffic, including but not limited to installation of signs and mail boxes, grading and landscaping.
 - (2) Emergency excavations do not require a permit prior to commencing the excavation but are otherwise regulated by this division.
- (Ord. No. 218, § 4, 5-12-82)

Sec. 16-45. Responsibility.

The city manager shall have the responsibility for enforcing this division. For this purpose, he may act personally or through any city employee he may designate.

(Ord. No. 218, § 15, 5-12-82)

Sec. 16-46. Enforcement.

To enforce this division, the city manager or his designee, may:

- (1) Withdraw any permit issued under this division if the permittee fails to abide by the terms of this division.
- (2) Seek an order from the county superior court to require the permittee to comply with the terms of this division.

- (3) Withhold escrow funds until the permittee has complied with this division.
 - (4) Bring a suit in any court to collect any monies due the city.
 - (5) Prosecute a criminal action against any person who violates this division.
- (Ord. No. 218, § 16, 5-12-82)

Sec. 16-47. Penalty.

Any person who makes an excavation in a city highway without first obtaining a permit to do so; or, after making an emergency excavation, fails to obtain a permit as required by section 16-49, or otherwise fails to comply with the provisions of section 16-49, shall be guilty of a violation, and each day a city highway remains unrestored, after an excavation in violation of this division, shall be a separate offense.

(Ord. No. 218, § 17, 5-12-82)

Sec. 16-48. Permit required.

No person shall make a nonemergency excavation within a city highway without first obtaining an excavation permit, as herein provided. Permits for emergency excavations shall be obtained after the excavation has been commenced, as herein provided.

(Ord. No. 218, § 5, 5-12-82)

Sec. 16-49. Permits, procedures for emergency excavations.

(a) Any person proposing to make an emergency excavation shall, prior to commencing any work or disturbing the normal traffic flow in any city highway, notify the police department, fire department and the department of public works of the nature of the emergency, exact location and intended work schedule; provided, if there is an existing and immediate danger to public safety, such notification may be delayed until the danger is under control or other persons are available to complete the notification.

(b) Any person who actually makes an emergency excavation shall:

- (1) Provide, at his cost, construction signs and traffic-control personnel (flag people or uniformed officers as deemed necessary by the police department) in accordance with traffic control regulations established pursuant to section 16-57.
 - (2) Within two (2) working days of the start of the emergency excavation, apply for and obtain a retroactive permit.
 - (3) Restore the disturbed section of the city highway in accordance with the standards adopted pursuant to section 16-56.
- (Ord. No. 218, § 6, 5-12-82)

Sec. 16-50. Permit application.

(a) All applications for a permit to excavate within a city highway shall utilize the standard form available from the department of public works. On this form, the applicant shall indicate the following:

- (1) Names and addresses of owner and applicant.
- (2) Written description of proposed work, including work methods and location.
- (3) Anticipated work schedule.
- (4) Names, addresses, and telephone numbers of people in charge of work and the people to be contacted in case of emergency during nonworking hours.
- (5) Names and addresses of contractors and subcontractors to be involved with the excavation and what work each will perform.
- (6) Anticipated need for uniformed officers for traffic control including number and approximate schedule and the police department may require uniformed officers for traffic control.

- (7) Requests for assistance from the department of public works prior to and/or during the proposed excavation work, including the stakeout and location of existing city utilities.
 - (b) A complete application for an excavation permit shall include, in addition to the standard form, the following:
 - (1) A plan of the proposed work. The department of public works shall determine the degree of detail and accuracy required for the plan and whether the plan must be certified by a professional engineer or licensed land surveyor. The plan shall accurately depict the following:
 - a. Location of proposed excavation with respect to permanent physical features such as property corners, limits of the highway right-of-way, buildings, utility poles and structures, curbing, sidewalks and walls.
 - b. Location of existing utilities within the work area.
 - c. Location and construction details including material specifications of any proposed utilities, structures, or equipment to be installed, placed or constructed within city highways.
 - d. Construction details for the restoration of highways and related structures as required by the department of public works.
 - e. Location and typical details of traffic-control signs and devices, construction warning signs, and traffic routes during construction as required by this division and the police department.
 - (2) The correct pavement restoration fee determined in accordance with section 16-54, and/or the correct escrow determined in accordance with section 16-55.
 - (3) An agreement that the permittee will hold the city harmless from any claim, by third parties, for any damage or loss which occurs as a result of the construction activities. In addition, the permittee shall include a certificate of insurance or other proof, acceptable to the department of public works, of financial responsibility for such liability.
- (Ord. No. 218, § 7(A, B), 5-12-82)

Sec. 16-51. Procedure.

(a) *Compliance.* An applicant for an excavation permit, other than a retroactive permit for emergency excavation, shall abide by the procedure set forth in this section.

(b) *Preliminary discussion.* Prior to submitting the application for an excavation permit, the applicant shall discuss the proposed work with the department of public works to determine, in advance, the requirements for traffic control, highway restoration, escrow, and pavement restoration fee. The department of public works may require the applicant to hold a preapplication conference with all involved city departments, public and private utilities, and other interested parties in order to achieve maximum coordination and cooperation.

(c) *Submission of application.* The application for an excavation permit shall be submitted to the department of public works a minimum of seven (7) working days prior to the proposed start of work (except a retroactive permit for emergency excavation). Upon receipt, the department of public works shall first forward the application to the police department for review.

(d) *Police department review.* Applying the criteria established pursuant to section 16-57, the police department shall determine whether special traffic-control procedures are required and place the work zone sign it requires. For this purpose, the police department shall have the authority to:

- (1) Specify the type, number and location of work zone, construction, and traffic-control signs, signals, barriers, lights and devices to be furnished by the permittee.
- (2) Require permittee to furnish, at his cost, flag people and/or uniformed officers for traffic-control at designated locations and times.
- (3) Designate or restrict working hours to avoid conflict with peak hour traffic.
- (4) Establish detour routes for traffic while work is in progress.

All special traffic-control conditions imposed by the police department shall be by written endorsement on or attached to the permit

application form; and, the endorsed application shall be returned to the department of public works within two (2) working days.

(e) *Department of public works review.* After endorsement by the police department, the department of public works shall review the application for completeness. Within three (3) working days, the department of public works shall approve or disapprove the application. Applications not acted upon within five (5) working days of submittal shall be deemed approved.

- (1) In approving the application the department of public works may impose conditions and restrictions on the proposed excavation and shall have the authority to:
 - a. Specify the location for the placement of utilities within city highways.
 - b. Impose special requirements for the restoration of the city highway including material, work and performance standards and equipment consistent with the regulations established pursuant to section 16-56.
 - c. Determine the amount of escrow required and the pavement restoration fee.
 - d. Allow or direct the applicant to place the final pavement surface in lieu of city performing the work.
 - e. Specify work and construction methods, procedures, and materials to protect existing utilities or other public works facilities, to minimize disruption of services and traffic, and to protect the public health and welfare.
- (2) The department of public works may disapprove an application which is:
 - a. Incomplete, inaccurate, or without required supporting submittals.
 - b. Without the specified amount of escrow or pavement restoration fee.
 - c. For work contrary to this and other city ordinances and regulations, or law.
 - d. For work within newly constructed or surfaced streets for a period of three (3) years after final surfacing.
- (3) Approval or disapproval of applications shall be in writing either on or attached to the permit application form and

shall include all imposed special conditions or reasons for disapproval.

(Ord. No. 218, § 7(C), 5-12-82)

Sec. 16-52. Communications.

Permittee shall keep the police department and the department of public works informed of work schedules, progress and the name and telephone number of some person to contact in an emergency. During nonworking hours, the person designated to respond to an emergency shall always remain within thirty (30) minutes' travel time of the job site and insure that the police department dispatcher knows a telephone number where he can be reached. Such person shall monitor and maintain all required traffic-control devices, warning signs, and temporary road surfaces as well as respond to any emergency at the job site.

(Ord. No. 218, § 8, 5-12-82)

Sec. 16-53. As-built plan.

Upon completion of an excavation involving the installation of new or replacement utilities, structures or equipment, the permittee shall submit to the department of public works an as-built plan of the actual construction. The as-built plan shall be on polyester film and, if determined necessary by the department of public works, be certified by a professional engineer or registered land surveyor. No escrow shall be released until a satisfactory as-built plan is received.

(Ord. No. 218, § 9, 5-12-82)

Sec. 16-54. Pavement restoration fee.

(a) Standard procedure for the restoration of excavated hard surface (paved) highways shall be for the permittee or its agents to backfill the excavation, place the travel sub-base, and place a temporary pavement surface in accordance with the standards adopted pursuant to section 16-56. The department of public works shall be responsible for the placement of the permanent pavement surface unless the permittee is specifically authorized or directed to do so. A pavement restoration fee payable prior to the approval of an excavation permit shall reimburse the city for this

work. The fee amount shall be determined from a schedule of unit prices established annually by the department of public works based on actual costs of the city performing such work. Should the actual area of permanent pavement restored differ from the estimated area, the permittee shall pay for any additional work or the city shall reimburse the permittee for any overpayment.

(b) The department of public works may authorize or direct applicants to make final pavement restorations provided the department of public works determines that the applicant or its agents possesses the equipment necessary to perform quality pavement restoration in accordance with this division. Such authorization shall result in the waiving of the pavement restoration fee. The applicant, however, may be required to escrow sufficient funds to assure proper restoration, in accordance with section 16-55.

(Ord. No. 218, § 10, 5-12-82)

Sec. 16-55. Escrow.

The department of public works may require an applicant for an excavation permit to furnish a performance bond or cash escrow to assure compliance with this division, in addition to any pavement restoration fee. The department of public works may take into consideration the applicant's construction experience and past performance, the location and complexity of the work, and the highway involved when deciding the necessity for escrow. The amount of escrow shall be determined by the department of public works based on the estimated costs of traffic control, maintenance of the highway during excavation, and restoration of the highway as required under this division. Upon satisfactory compliance with this division, the escrow shall be released within sixty (60) days. Should the permittee fail to comply with this division, the city may use the escrow funds to complete the obligations of the permittee. Any excess escrow will be refunded to the permittee and any costs in excess of the escrow will be billed to the permittee.

(Ord. No. 218, § 11, 5-12-82)

Sec. 16-56. Supplemental regulations and standards.

The city engineer shall, with the approval of the city council, establish regulations and standards for excavation and restora-

tion of city highways. Such regulations may be amended from time to time with city council approval and shall, as a minimum, include the following:

- (1) Standards for the cutting of pavement.
 - (2) Construction methods, materials and specifications for excavations, backfill, installation of utilities, restoration of highways and associated structures, and the placement of temporary and final pavement surfaces.
 - (3) Procedures and standards for maintenance of highway surfaces during construction and temporary pavements.
 - (4) Seasonal limitations on nonemergency excavations.
 - (5) Limitations on the use and occupancy of the highway right-of-way during construction.
- (Ord. No. 218, § 12, 5-12-82)

Sec. 16-57. Traffic control.

The police department and the city engineer shall jointly establish, with city council approval, regulations and standards for the control of vehicle and pedestrian traffic during excavation and restoration of city highways. Such regulations may be amended from time to time with city council approval and shall, as a minimum, include the following:

- (1) Standards for the construction and placement of temporary signs, lights, barricades, fencing, and other warning devices within the construction area.
 - (2) Standards and procedures for traffic control, maintenance of traffic flow, establishment of detours, and the closing of streets.
 - (3) Responsibilities and duties of flag people.
 - (4) Procedures for requesting, obtaining, and compensating uniformed officers for traffic control.
- (Ord. No. 218, § 13, 5-12-82)

Sec. 16-58. Appeal.

Any person who is:

- (1) Denied a permit under this division; or,
- (2) Dissatisfied with any pavement restoration fee, performance bond, or escrow amount established under this division; or
- (3) Denied a proper refund of any funds placed in escrow under this division;

may have an appeal to the city council. Such appeal must be in writing, must state the grounds for the appeal and must be filed with the city clerk not more than ten (10) days after the action from which the appeal is taken. Upon receipt of an appeal, the city clerk shall set a date, not sooner than seven (7) days and not later than fourteen (14) days after the date the appeal was filed, for a hearing on the appeal. Notice of the hearing shall be given in writing to the person filing the appeal and to the department of public works, and a public notice of the time and place of the hearing shall be posted in two (2) appropriate public places at least twenty-four (24) hours, excluding Saturdays, Sundays and legal holidays, prior to such hearing. The hearing shall be open to the public and minutes shall be kept and filed, as required by RSA 91-A:2. The appellant may be, but need not be, represented by an attorney. The procedures for the hearing shall be established by the city council, but shall be informal and the formal rules of evidence shall not apply. The decision of the city council, on the appeal, shall be final.

(Ord. No. 218, § 14, 5-12-82)

Secs. 16-59—16-75. Reserved.

ARTICLE III. CEMETERIES*

Sec. 16-76. Title.

This article shall be known as the "Cemetery Rules and Regulations for the City of Claremont."

(Ord. No. 182, § 1, 5-10-78)

***Cross reference**—Department of public works, § 2-296 et seq.

Sec. 16-77. Purpose.

The purpose of this article shall be to preserve the public peace and good order on lands operated as municipal cemeteries by the city and to provide for the rules and regulations necessary for the protection of lot and grave owners and for the proper conduct and good order of the cemeteries.

(Ord. No. 182, § 2, 5-10-78)

Sec. 16-78. Conduct in cemeteries.

No person shall after October 12, 2016:

- (1) Enter or leave a cemetery except through an established gate or entranceway.
- (2) Deposit rubbish or debris on cemetery grounds, except in receptacles provided.
- (3) Pick or mutilate any flowers, either wild or domestic, or disturb any tree, shrub, or other plant material.
- (4) Use barbeques or fires of any kind, or consume alcoholic beverages in a cemetery, or bring the same upon the premises. A cemetery is not a park or playground.
- (5) Use any form of advertising on cemetery premises.
- (6) Discharge firearms or any other weapon in or adjacent to any cemetery. This prohibition shall not apply to authorized volleys at burial services conducted by recognized military organizations or associations of the United States.
- (7) In any way disturb, damage or deface any monument, stone, fence or other structure, or property within any cemetery.
- (8) No dogs or other domestic animal shall be allowed on cemetery grounds unless leashed, under the control of the owner or custodian and quiet. The owner or custodian of such animal shall be responsible for the removal and proper disposal of any animal waste as required in section 4-34 of this Code and further shall be liable for any destruction to any landscaping, monument or marker, whether natural or otherwise, caused by such animal.

- (9) No child under the age of ten (10) years shall be allowed in any cemetery unless accompanied by an adult.
- (10) Horseback ride within or through the cemeteries and no person through fault or neglect shall allow any stock to trespass within the cemeteries.
- (11) Be within the cemetery at any time other than between the hours of 7:00 a.m. and 9:00 p.m. except cemetery employees, police officers, or by authorization of the superintendent.
- (12) No privately owned drone or similar aerial device shall be permitted in the air space over municipal cemeteries.
(Ord. No. 182, § 3, 5-10-78; Ord. No. 550, § 1, 12-14-2016)

Sec. 16-79. Traffic regulations.

(a) No person shall operate or cause to operate any vehicle, including motor bikes, within a cemetery except on roads designed for that purpose and no vehicle or motor bike shall be driven at a speed in excess of fifteen (15) miles per hour upon any roads within municipal cemeteries. Nor shall any off-road vehicles (including scooters, go-carts, ATVs or snowmobiles) be allowed within any cemetery.

(b) No person shall enter any cemetery with a loaded truck, except the city maintenance crews, unless permission has been received from the cemetery superintendent.

(c) No person shall unload any stone, dirt or other material from trucks in any cemetery, except the city maintenance crews in the normal discharge of their work, or encumber walks, avenues, or places with such material, without express permission and consent of the superintendent or his designated representative.

(d) Any person operating a vehicle or motor bike within any cemetery shall be subject to all the traffic laws of the city and the state applicable to motor vehicle operation.
(Ord. No. 182, § 4, 5-10-78; Ord. No. 550, § 2, 12-14-2016)

Sec. 16-80. Establishment of cemeteries.

(a) *Authority.* The city council shall have the final authority for the establishment of cemeteries within the city, and shall as the need arises set aside new ground areas for this purpose.

(b) *Existing cemeteries.* The following named existing cemeteries shall be deemed to have been established as municipal cemeteries:

- (1) Mountain View Cemetery
- (2) Union Cemetery
- (3) Pleasant Street Cemetery
- (4) Broad Street Cemetery
- (5) West Claremont Burying Ground

(c) *Platting of cemeteries.* Before any new land is opened for cemetery use and the sale of lots, the cemetery superintendent shall have such land area laid out showing the system of lots, except that the layout for the West Claremont Burying Ground shall be designed and approved by the West Claremont Burying Ground Association.

(d) *Lot size established.* Lot sizes for the municipal cemeteries are hereby established as follows:

- (1) Single three-grave lot, ten (10) feet by twelve (12) feet or 120 square feet.
- (2) Double two-grave lot, seven (7) feet by twelve (12) feet or eighty-four (84) square feet.
- (3) Single one-grave lot, three (3) feet six (6) inches by twelve (12) feet or forty-two (42) square feet.
 - a. Single grave lot sections shall be established within cemetery areas for those persons desiring single graves.
 - b. Each single grave will accommodate no more than one (1) full casket plus four (4) cremation urns, or, if no full casket burial, up to six (6) cremation urns will be permitted.

- c. A portion of Section X in Mt. View Cemetery will be set aside for the burial of indigent persons, which may be marked; however, no monuments shall be permitted. All such burials shall be cremation burials.

(e) *Records.* The cemetery superintendent shall keep records for each cemetery consisting of a lot book, an index of lot owners, an interment register and a burial record. All such records shall be kept at the superintendent's office and be kept current. In addition, the superintendent shall keep any and all necessary records for the proper administration of the municipal cemeteries.

(f) Grave liners or vaults made of cement or material of equal permanence are required for all burials, including cremation burials.

(Ord. No. 182, § 5, 5-10-78; Ord. No. 312, art. I, § 5, 11-8-89; Ord. No. 550, § 3, 12-14-2016)

Sec. 16-81. Purchase of lots.

(a) *Condition of lot purchases.* Lots purchased in the laid-out sections of cemeteries of the city shall be conveyed by special deed for burial purposes only, and shall be subject at all times to the provisions of the city Charter, this Code, city ordinances, and applicable state laws. All lots shall be taken in sequence providing no selection within a row of lots. Choice can be made from among the various sections of the cemeteries. Lots within the West Claremont Burying Ground shall not be sold until the necessity for use arises.

(b) *Purchase procedure.* Lots in the laid-out cemeteries may be purchased from the cemetery superintendent. Payment for lots purchased shall be evidenced by a deed prepared by the public works director or designee and signed by the cemetery superintendent. Each deed shall state the name of the purchaser, purchase price, name of cemetery, number of the lot and section in which the lot is located and shall contain a provision which prohibits resale of the lot without the written consent of the city. Such consent may be given by the superintendent of cemeteries or the public works director.

(c) *Records of cemeteries and purchase of lots.* The keeping of records of the cemeteries of the city shall be the responsibility of the cemetery superintendent. All maps showing laid-out sections of each cemetery, records of lot ownership and burials shall be kept by the cemetery superintendent. Copies of the deeds conveyed for lot purchases shall be recorded by the department of public works in a book provided for this purpose.

(d) *Transfer of lots.* Lots previously sold may be resold to a new owner by a deed which contains the following statement:

"The City of Claremont hereby consents to this conveyance.

"CITY OF CLAREMONT

"By: _____"

After receiving his deed, the new owner shall present the deed to the department of public works who shall register the change in ownership in the records of the cemeteries. No person shall be recognized as an owner, or part owner, unless the change of ownership is so recorded.

(e) *Use of lots.* No dogs, pets, or animals of any kind may be buried in city cemeteries.

(f) *Charge for lots and other services.* The city manager shall draft a schedule of rates for lots and other cemetery services which shall be submitted to the city council and which shall become effective one (1) month after its submission unless vetoed by the council within that period. The schedule of rates shall be made a part of these regulations and shall be on file in the city clerk's office.

(Ord. No. 182, § 6, 5-10-78; Ord. No. 312, art. I, § 6, 11-8-89; Ord. No. 550, § 4, 12-14-2016)

Sec. 16-82. Cemetery maintenance.

Effective October 12, 2016, the following shall apply:

(a) *Responsibility of the city.* The general maintenance of the cemeteries, designed to improve and maintain their appearance and condition, shall be the responsibility of the city. It shall include such items as the upkeep of drives, buildings, fences, spring and fall clean-up, raking of leaves, and the general

periodic mowing of grass. The city shall have no liability and is not responsible for items lost or stolen from graves or any damage to plantings caused by maintenance, plowing, mowing, weather, or the opening or closing of a grave.

(b) *Planting trees or shrubs prohibited.* No trees or shrubs shall be planted in any lot in any municipal cemetery by any person, except as hereinafter provided. Existing trees or shrubs may be removed by the cemetery division if detrimental to the cemetery, adjoining lots or inconvenience the care and maintenance of lots, except that cutting or removing trees and shrubbery in the West Claremont Burying Ground shall require the prior consent of the West Claremont Burying Ground Association. The cemetery superintendent may at his discretion make such plantings as deemed appropriate to the aesthetics of the cemetery yet avoiding increased maintenance costs. The West Claremont Burying Ground Association may, upon prior notice to the cemetery superintendent, plant trees or shrubs in the West Claremont Burying Ground.

(c) *Plantings.* No planting may extend beyond an eighteen-inch strip along the sides and front of any grave marker, headstone or monument. Private use of pesticides and fertilizers is prohibited. The city is not responsible or liable for the care, maintenance or other upkeep of such plantings.

(d) *Grading of lots.* All grading of lots shall be done by the cemetery department, and no person shall do any grading causing the surface of the ground to be raised above the existing height of the surrounding area.

(e) *Curbs and fencing.* No "curbs," "fences," "shrines," "structures" or "buildings" shall be permitted on or around any individual lot or group of lots. Notwithstanding the above, landscaping borders are permitted to a maximum height of twelve (12) inches above grade so long as such landscaping border does not extend beyond the eighteen-inch strip referenced in subsection (c).

(f) *Monuments, markers and foundations.* All municipal cemeteries shall be permitted to have monuments, markers and cornerstones of such dimension and material as shall be approved

by the cemetery superintendent. All cornerstones and markers shall be set flush with the lawn surface so that no part shall protrude above the surface of the ground and shall be set by cemetery personnel. There shall be only one (1) corner post per lot. Foundations for monuments shall be constructed of concrete by the cemetery department upon request. Any foundation installed by other than the cemetery department or monument companies will be removed. Those requesting foundations shall make the request in writing stating the size of foundation desired. No monument, marker, cornerstone, or any other obstruction shall be placed on any lot until the lot is paid for in full. All work on monuments, markers, foundations, and lettering must be done during the working hours of the cemetery department. However, if in the opinion of the superintendent an unusual or emergency situation exists, the superintendent may permit work of this nature to be performed during nonworking hours under the inspection and supervision of the cemetery department, for which a charge which is on file in the city clerk's office will be made by the cemetery department. Only one (1) aboveground upright marker, headstone or monument is permitted per owner's lot (grave or group of graves). All memorials, regardless of the nature of the upright marker, headstone or monument, shall be placed in a line that is even with all other memorials in that row, thereby forming a straight line.

(g) *Beautification.* Plants, flowers, vases, urns, potted plants or small personal items may be placed upon any cemetery lot within the eighteen-inch strip referenced in subsection (c), subject to the approval of the director of public works or the cemetery superintendent.

(h) *Benches.* Benches are permitted in place of an upright marker, headstone or monument. One (1) stone bench, eighteen (18) inches high by thirty-six (36) inches long by twenty-four (24) inches wide will be permitted in place of an upright marker, headstone or monument. Any item not in compliance with these regulations and existing on a lot or gravesite prior to October 12, 2016 may not be replaced once removed without the express prior approval of the director of public works or the cemetery superintendent.

(i) *Entry by superintendent.* Except for prior consent required from the West Claremont Burying Ground Association for the West Claremont Burying Ground, the cemetery superintendent may enter upon any lot and remove any shrub or tree that is deemed detrimental to the cemetery or adjoining lots or unsightly or inconvenient to the public. He may enter upon any lot and make any improvement deemed for the advantage of the grounds. Notice of removal of a shrub or tree shall be given to the lot owner. Any lot owner who is aggrieved by the determination of the cemetery superintendent may, within thirty (30) days of receipt of the notice, appeal to the city council.

(j) *Approval required.* Any item not expressly designated in this article for placement on a lot or gravesite is prohibited unless authorized by the director of public works or the cemetery superintendent, such authorization to be made on a case-by-case basis.

(k) *Violations.* Any item placed on a lot or gravesite in violation of this article may be removed by the department of public works, without notice.
(Ord. No. 182, § 7, 5-10-78; Ord. No. 312, art. I, § 7, 11-8-89; Ord. No. 550, § 5, 12-14-2016)

Sec. 16-83. Burials.

(a) *Condition for burial.* No burial shall take place without first a burial permit having been obtained from the city clerk by the person making arrangements for a burial, and all conditions of laws and ordinances having been complied with.

(b) *Preparation of grave.* The preparation of graves and laying out of graveside ceremonial material shall be the responsibility of the cemetery department. Any individual party or family may request such preparation be dispensed with for their particular service.

(c) *Winter burials.* The cemetery department will prepare graves for burial during the winter months, weather and other circumstances permitting.

(d) *Notice and time of interment.* Notice of interment must be given to the cemetery superintendent at least twelve (12) working hours in advance. Burials shall take place between 9:00 a.m. and 3:00 p.m., Monday through Friday and between 9:00 a.m. and 12:00 noon on Saturday's excepting extremely unusual cases approved by both the cemetery superintendent and the city manager.

(e) *Burials on Sunday or legal holidays.* Because of the problems inherent with Sunday or legal holiday work, no burials shall be permitted on such days, except where extenuating circumstances exist in any particular case, and then shall be allowed only at the discretion of both the cemetery superintendent and the public works director subject to the fees which are on file in the city clerk's office.

(f) *City not responsible.* Neither the city nor the cemetery department shall be responsible for errors in locations of graves on lots arising from improper instructions from persons making arrangements. In all cases orders for grave openings shall be communicated to the cemetery department in writing. Orders from funeral directors shall be construed as orders from owners.

(g) *Outside burials.* In matters pertaining to burials coming into the city from outside agencies, unless the exact lot and grave location is ordered with sufficient identification to the satisfaction of the cemetery department, the body will be entombed pending proper arrangements.

(h) *Vaults.* Concrete vaults, or concrete grave boxes or their equal, approved by the cemetery superintendent, shall be required for all burials in the cemeteries.

(Ord. No. 182, § 8(h), 5-10-78; Ord. No. 252, § 1, 5-8-85; Ord. No. 550, § 6, 12-14-2016)

Sec. 16-84. Care of lots.

(a) *Perpetual care required.* All cemetery lots shall require a perpetual care trust fund reserved in the name of the lot owner for the maintenance and care of such lots.

(b) *Purchase of perpetual care.* Perpetual care trust funds for the care and maintenance of lots shall be purchased from the public works director or designee and such funds shall be held in trust, the income thereof to be used by the city for perpetual care services, in accordance with the City Charter and applicable state laws.

(c) *Perpetual care prerequisite to burial.* Owners of cemetery lots purchased without perpetual care will be required to obtain perpetual care service before a grave opening will be performed on their lots. Such owners may secure perpetual care service by applying to the department of public works for the acceptance of a sum sufficient to provide the income necessary for the care and maintenance of the lot as established in the schedule of rates which are on file in the city clerk's office.

(d) *Definition.* The care and maintenance of lots, whether perpetual or ordinary, shall include the mowing and trimming of grass at reasonable intervals, the raking and cleaning of lots, and the grading and seeding of lots. Perpetual or ordinary care shall not include the maintenance or repair of any monuments, stones, markers or walls, nor the planting or care of flowers or shrubs.

(Ord. No. 182, § 9, 5-10-78; Ord. No. 550, § 7, 12-14-2016)

Sec. 16-85. Damaging cemetery property.

No person shall have the right to alter or destroy cemetery property. Any person damaging any cemetery property shall be liable for any damages incurred.

(Ord. No. 182, § 10(B), 5-10-78)

Sec. 16-86. Penalty for violation.

Any person convicted of a violation of this article shall be subject to punishment as provided in section 1-12.

(Ord. No. 182, § 10(A), 5-10-78)

Secs. 16-87—16-100. Reserved.

ARTICLE IV. STREET NUMBERING SYSTEM

Sec. 16-101. Purpose.

[The purpose of this article is:]

- (1) To identify the locations and names of all streets and roads.
 - (2) To establish a uniform method of numbering primary buildings on public and private streets and roads.
 - (3) To promote efficiency in locating primary buildings.
 - (4) To provide more expedient emergency response.
 - (5) To provide a consistent system for mailing addresses.
- (Ord. No. 415, § I, 11-8-00)

Sec. 16-102. Parties affected.

All primary buildings within the boundaries of the city that do not have clearly established and/or displayed street numbers shall hereafter be identified according to the uniform street numbering system as herein contained as adopted or amended by the city council pursuant to their authority as outlined in RSA 231:133-a.

(Ord. No. 415, § II, 11-8-00)

Sec. 16-103. Numbering system.

A uniform street numbering system has been developed for all primary buildings based upon the following process:

- (1) For purposes of establishing street numbers, a street shall be considered any access way, whether public or private, which serves three or more parcels of land with a primary building located on at least three (3) of said parcels.
- (2) The starting point for each street is generally determined by its relationship to the urbanized center of the city or its logical direction given existing usage as indicated on the street list in Appendix B.*
- (3) All primary buildings on the right side of the street beginning at its starting point will have odd numbers.
- (4) All primary buildings on the left side of a street beginning at its starting point will have even numbers.
- (5) One (1) odd and one (1) even number will be assigned to each fifty-foot interval of frontage on the street as measured from the starting point of each street.
- (6) Numbers will be assigned by determining the point at which the main vehicular access (or the main pedestrian access if no vehicular access is provided) to the primary building coincides with a fifty-foot interval on the street as outlined by the formula and the chart in Appendix A. (Ex. If the driveway serving a single family house is on the right side of a road and is in the tenth [fifty-]foot segment, then the street number would be #19.)†
- (7) Unused numbers will be held for future use to ensure against the need for renumbering.

***Editor's note**—Appendix B of Ord. No. 415, adopted Nov. 8, 2000, has not been included within this Code, but may be found on file in the office of the clerk to the council.

†**Editor's note**—Appendix A of Ord. No. 415, adopted Nov. 8, 2000, has not been included within this Code, but may be found on file in the office of the clerk to the council.

- (8) Shopping centers, malls, properties with multiple primary buildings shall be assigned one (1) street number corresponding to the primary entrance location. Units shall be internally numbered according to a logical pattern and manner as approved by the director of planning/development or their designee.
 - (9) Street numbers shall be assigned by the director of planning/development, or their designee, after consultation with other appropriate officials (police, fire, highway, postal service, etc.) as needed.
 - (10) Primary buildings on existing numbered streets will retain their established street numbers and new numbers will only be assigned to unnumbered primary buildings in accordance with the existing established numbering pattern or where street names or numbers have been changed to meet the intent of this article.
- (Ord. No. 415, § III, 11-8-00; Ord. No. 479, § 1, 12-13-06)

Sec. 16-104. Procedures.

(a) All owners, tenants, occupants or persons in possession of primary buildings within the boundaries within the boundaries of the city shall affix, or cause to have affixed, the assigned street number(s) (or established numbers) in accordance with this section.

(b) All properties with primary buildings shall display the assigned street number (or established number) so as to be readily visible from the street.

- (1) For primary buildings readily visible from the street, the street number shall be conspicuously displayed on that side of the building that faces the street.
- (2) For primary buildings not readily visible from the street, the assigned street number(s) shall be conspicuously displayed at the main vehicular (or pedestrian if no vehicular access exists) access to the property, so as to be visible on a year-round basis. The preferred method of display at the main vehicular or pedestrian access shall be on both sides of a mailbox (see postal guidelines).

However, if a mailbox is not located at the main access, or if there is no mailbox, then the assigned street number shall be displayed on a sign post or similar means at the main access.

(c) All displayed street numbers shall be of a contrasting color to the means of support such as the primary building, mailbox, post, etc.

(d) All displayed street numbers shall be at least three and one-half (3 1/2) inches in height. The size of numbers placed on mailboxes shall be in accordance with U.S. Postal Service requirements.

(Ord. No. 415, § IV, 11-8-00)

Sec. 16-105. New buildings and subdivisions.

(a) Whenever a primary building is erected or located in the city, the assigned street number shall be affixed in the appropriate location as provided for by this article.

(b) Every subdivision or site plan submitted to the planning board for approval shall show an assigned street number for each primary building as applicable.

(c) In all cases, local postal officials, assessing office, police and fire departments and planning/zoning office shall be advised of new assigned street numbers.

(Ord. No. 415, § V, 11-8-00)

Sec. 16-106. Penalty.

(a) Any property owner who fails to comply with any relevant provision of this article within thirty (30) days of the mailing date of the notification of street numbering assignment shall be guilty of a violation with a penalty not to exceed two hundred fifty dollars (\$250.00).

(b) Any property owner who shall affix to or display upon a structure any number other than that assigned to it pursuant to this article shall be guilty of a violation with a penalty not to exceed two hundred fifty dollars (\$250.00).

(c) This section shall not apply to the display of "date of origin" numbers for historic buildings provided that they are displayed so as to not be confused with the display of the assigned street numbers.
(Ord. No. 415, § VI, 11-8-00)

Sec. 16-107. Administration.

This article shall be administered and enforced by the planning and development department.
(Ord. No. 415, § VII, 11-8-00)

Sec. 16-108. Appeals.

(a) Any property owner aggrieved by the implementation or administration of the provisions of this article may appeal to the city manager.

(b) The decision of the city manager may be appealed to the city council who shall have the final administrative authority over the implementation of the provisions of this article.

(c) All appeals shall be in written form setting forth the basis for the appeal.

(d) All appeals shall be acted upon in a timely fashion.
(Ord. No. 415, § VIII, 11-8-00)

ARTICLE V. NAMING OF CITY-OWNED PROPERTY

Sec. 16-109. Purpose and scope.

The purpose of this article is to provide procedures and criteria for the naming of city-owned property by the city council. This includes but is not limited to city-owned buildings, parks, trails, streets, parking lots, and other facilities.

This article will not apply to historic properties so designated by either federal or state government, to public art installations titled by the artist, or to highways, buildings or other facilities under the control of the State of New Hampshire.
(Ord. No. 557, § 1, 11-29-2017)

Sec. 16-110. Procedure.

The city council shall be the sole designating authority for naming all city-owned property. The decision on whether or not to name a specific city-owned building, park, trail, street, parking lot or other facility or property shall be by a majority vote of the city council, after public hearing duly noticed. All proposals to name or rename city-owned property located in the historic district should be considered for an opinion by the historic district commission prior to final consideration by the city council.

Requests to name city-owned property may be made, in writing, by the mayor, assistant mayor, city councilor, city manager, city board, commission or committee or citizen, detailing how the proposal meets the criteria as set forth in this article. The city council may refer the request to an advisory committee, established pursuant to section 2-27(a) of this Code. (Ord. No. 557, § 1, 11-29-2017)

Sec. 16-111. Naming considerations and criteria.

The following criteria for naming of city-owned property shall be considered by the city council in approving a request to name city-owned property, other than streets.

- (1) Context and geographical locations, reflecting the name in common use, function or significance of the property;
- (2) Natural or geological features of the property that are distinctive or physically prominent;
- (3) Historic significance that may be:
 - a. Associated with an event or series of related events in the city's history;
 - b. Associated with one (1) or more individuals who have played a significant role in the city's historic development or government;
 - c. Reflective of a distinctive artistic, scientific or literary achievement;

- d. Related to an existing or proposed historic property or district designated or eligible to be designated as historic by either federal or state government.
- (4) Contributions to the city, including but not limited to:
 - a. An individual or organization that has made a significant direct contribution of property or of money for the construction and/or development of a city facility;
 - b. An individual's significant public service, whether as a private citizen or public servant; however, generally city-owned property will not be named after a deceased person until at least one (1) year after the date of death, except where, in the sole discretion of the city council, the individual's contribution merits immediate recognition.
 - c. A living person may be considered with a two-thirds ($\frac{2}{3}$) vote of the city councilors present.

Already-named city-owned property may be renamed by the city council in extraordinary circumstances. As an alternative to renaming a specific city-owned property, the city council may, in its sole discretion, authorize commemorative plaques, signs, bricks, sidewalk markings or other objects to memorialize a location, event, person or organization of significance to the city. (Ord. No. 557, § 1, 11-29-2017)

Sec. 16-112. Naming considerations and criteria—Streets.

The following criteria for naming city streets and roads shall be considered by the city council in approving a request to name a city street:

- (1) The proposed name cannot be the same as or similar to an existing street name;
- (2) The proposed name must be consistent with the enhanced 911 telecommunications system and be approved by the city's 911 coordinator prior to consideration by the city council;

- (3) Proposed names are encouraged to be no more than one (1) word limited to fifteen (15) characters unless it can be demonstrated why there is good cause to exceed these limitations.

Naming of streets within a subdivision shall be at the discretion of the planning board in consultation with the subdivision developer as part of the subdivision approval process. The city council shall not be bound by a name previously assigned to a street by a private developer prior to its acceptance by the city, regardless of whether the street was part of a subdivision development.

Upon approval of a new name or a change in name for any city street, the city clerk shall keep a record of the new or changed street name and forward a copy of such record to the commissioner of transportation, as prescribed by RSA 231:133, III. (Ord. No. 557, § 1, 11-29-2017)

Sec. 16-113. Alternatives to changing names of streets or other facilities.

The city council should consider alternatives to changing the name of a street or other facility to commemorate community members, historic figures or important events including, but not limited to:

- (1) Interpretive plaques at prominent locations;
- (2) Sidewalk bricks or inserts;
- (3) Approval of all such alternatives shall follow the procedures, including a public hearing, set forth in section 16-110, above.

(Ord. No. 557, § 1, 11-29-2017)

Secs. 16-114—16-118. Reserved.

